



Code: AC-AR
Adopted: 7/21/21

Discrimination Complaint Procedure

Complaints regarding discrimination or harassment, on any basis protected by law, shall be processed in accordance with the following procedures:

Step 1 Complaints may be oral or in writing and should be filed with the administrator/principal. Any staff member that receives a written or oral complaint shall report the complaint to the administrator/principal. Oral complaints received shall be reduced to writing by the staff member receiving the complaint and confirmed with the person making the complaint immediately.

The administrator/principal or a designee shall investigate and determine the action to be taken, if any, and reply in writing to the complainant within 10 school days of receipt of the complaint.

If the complainant is not satisfied with a decision reached in this step by the administrator/principal, the complainant may submit an appeal to the Board as outlined in Step 3.

Step 2 If the complainant wishes to appeal the decision of the administrator's/principal's designee, the complainant may submit a written appeal to the administrator/principal within five school days after receipt of the designee's response to the complaint.

The administrator/principal shall review the designee's decision within five school days and may meet with all parties involved. The administrator/principal will review the merits of the complaint and the designee's decision. The administrator/principal will respond in writing to the complainant within 10 school days.

Step 3 If the complainant is not satisfied with the decision of the administrator/principal, a written appeal may be filed with the HCCS Board (board@hopeccs.org) within five school days of receipt of the administrator/principal's response in Step 2. The Board may decide to hear or deny the request for appeal at a Board meeting. If the Board decides to hear the appeal, the Board may meet with the concerned parties and their representative at the next regular or special Board meeting. The Board's decision will address each allegation in the complaint and contain the reasons for the Board's decision. A copy of the Board's decision shall be sent to the complainant in writing within 10 days of this meeting.

If the Board decides not to hear the appeal the administrator/principal's decision is final.

If the director of operations is the subject of the complaint, the complaint should be referred to the administrator/principal and start at step 2. If the administrator/principal is the subject of the complaint the individual may start at Step 3 and file a complaint with the Board chair. The Board may refer the investigation to a third party.

Complaints against the Board as a whole or against an individual Board member may start at Step 3, should be submitted to the Board chair, and may be referred to counsel. Complaints against the Board

chair may start at Step 3 and should be referred directly to the HCCS Board (board@hopeccs.org). The Board may refer the investigation to a third party.

Timelines may be extended based upon mutual consent of the HCCS and the complainant in writing.

Appeal Process

A decision reached by this HCCS board for a complaint that alleges a violation of OAR 581-021-0047 (Prohibition against using Native American mascots) may be appealed to Oregon Department of Education (ODE) under OAR 581-002-0001 - 581-002-0023.

A final decision reached by the HCCS board for a complaint that alleges a violation of Oregon Revised Statute (ORS) 659.850 or Oregon Administrative Rule (OAR) 581-021-0045 or OAR 581-021-0046 (Discrimination), is recognized as the final decision regarding this complaint by the Board of the Beaverton School District. A final decision may be appealed to ODE under OAR 581-002-0001 - 581-002-0023.

Hope Chinese Charter School
DISCRIMINATION COMPLAINT FORM

Name of Person Filing Complaint Date School or Activity

Student/Parent ☐ Employee ☐ Job applicant ☐ Other ☐ _____

Subject of complaint:

- | | | |
|--|---|--|
| ☐ Race | ☐ Marital status | ☐ Income level |
| ☐ Color | ☐ Familial status | ☐ Athletic ability |
| ☐ Religion | ☐ Economic status | ☐ Proficiency in English |
| ☐ Sex | ☐ Veterans' status | ☐ language |
| ☐ National or ethnic origin | ☐ Age | ☐ Discriminatory use of a |
| ☐ Mental or physical | ☐ Sexual orientation | ☐ Native American mascot |
| disability | ☐ Pregnancy | ☐ Other _____ |

Specific complaint: (Please provide detailed information including names, dates, places, activities and results of discussion.)

Who should we talk to and what evidence should we consider?

Suggested solution/resolution/outcome:

This complaint form should be mailed or submitted to the administrator/principal.

Direct complaints related to educational programs and services may be made to the U.S. Department of Education, Office for Civil Rights. Direct complaints related to employment may be filed with the Oregon Bureau of Labor and Industries, Civil Rights Division or the U.S. Department of Labor, Equal Employment Opportunities Commission.